

IN THE SUPREME COURT OF PAKISTAN

(Appellate Jurisdiction)

Bench

Justice Muhammad Hashim Khan Kakar

Justice Salahuddin Panhwar

Justice Ishtiaq Ibrahim

Criminal Petition No. 51 of 2023

(Against Judgment dated 15.12.2022 passed by the Lahore High Court, Multan Bench in Criminal Appeal No. 655/2022)

Alam Khan

... Petitioner(s)

Versus

The State

...Respondent(s)

For the Petitioner(s): Mr. Abdul Rashid Sheikh, ASC

For the State: Mr. Tariq Siddique, APG, Pb

Assistance: Mr. Muhammad Subhan Malik, JLC, SCP

Date of Hearing: 09.06.2026

JUDGMENT

Salahuddin Panhwar, J.- Through the instant Criminal Petition, the petitioner seeks leave to appeal against the judgment dated 15.12.2022 passed by the learned Lahore High Court, Multan Bench, Multan, whereby Criminal Appeal No.655 of 2022 was dismissed and the conviction and sentence recorded by the learned Additional Sessions Judge, Dera Ghazi Khan, vide judgment dated 21.06.2022, under section 9(c) of the Control of Narcotic Substances Act, 1997 ("CNSA") were maintained.

2. Briefly stated, the prosecution case is that on 21.12.2021 complainant accompanied by other police officials, was present at Check Post Sakhi Sarwar where they intercepted double-cabin vehicle bearing registration No. KWA-6262 from which the raiding party allegedly recovered twenty-seven packets of Charas weighing one kilogram each from a secret cavity. Consequently, FIR No.356 of 2021 was registered against the petitioner under section 9(c) CNSA.

3. Upon conclusion of trial, the petitioner was convicted under section 9(c), CNSA and sentenced to imprisonment for life with fine

of Rs.100,000/-. The appeal preferred before the learned High Court met the same fate and was dismissed.

4. We have heard the learned counsel for the petitioner, learned counsel for the state and have examined the record with their assistance. The entire prosecution case revolves around the alleged recovery of narcotics from the possession of the petitioner; however, the prosecution evidence suffers from serious infirmities which have escaped the notice of the Courts below.

5. It is now a settled principle of law that where conviction is sought on the basis of recovery of narcotics, the prosecution must establish through trustworthy, confidence-inspiring and unimpeachable evidence that the narcotic substance allegedly recovered from the accused remained in safe custody and that the samples examined by the forensic laboratory were the very same samples allegedly drawn from the recovered substance. The first and most significant defect pertains to the custody of the alleged narcotics. According to PW-1 Sajjad Akhtar, SI, after conducting investigation he handed over the case property to the Moharrir. Conversely, the evidence of PW-2 Moharrir Ghulam Hassan reveals that the case property and sample parcels were handed over to him by complainant Muhammad Sharif ASI. Thus, a material contradiction emerges regarding the identity of the person who actually entrusted the recovered narcotics to the Moharrir.

6. The most significant aspect of the case is the allegation of recovery of narcotic substance from secret cavities of the vehicle. The prosecution has failed to produce either the vehicle itself, or the photographs of the secret cavities in the said vehicle. In cases where the prosecution seeks to attribute evidentiary value to the alleged recovery of narcotic substances from specially designed or concealed secret cavities within a vehicle, such a claim cannot be accepted on the basis of oral testimony alone. The existence, location, dimensions, and functional capacity of such cavities constitute material facts that require satisfactory proof through the best available evidence. Therefore, in all such cases, it is incumbent upon the prosecution to preferably produce the vehicle before the trial Court, where feasible, or at the very least, place on record clear, unambiguous photographs as documentary evidence. These

photographs must depict the secret cavities in their opened and closed states, their precise location within the vehicle, and the registration number of the vehicle to enable proper identification. Such production of vehicle or photographic evidence is essential to allow the Court to independently verify whether the cavities actually existed and were capable of concealing the recovered substance in the manner alleged. Mere bald assertions by police witnesses regarding the existence of secret cavities, unsupported by any visual or tangible corroborative evidence, fall far short of the standard of proof required in criminal cases involving grave penal consequences. The production of the vehicle or its photographic record is not a mere formality but a necessary safeguard to ensure transparency and fairness of the investigation, to facilitate meaningful judicial scrutiny, and to eliminate any possibility of exaggeration, embellishment, or false implication. Failure to meet this requirement creates a serious lacuna in the prosecution case, particularly when the alleged concealment forms the very foundation of the charge.

7. Even otherwise, no excise official was brought for evidence regarding ownership record and registration particulars of the vehicle were also withheld. Thus, the prosecution did not prove that the vehicle belonged to the petitioner, or that it was in his lawful and exclusive possession at the relevant time.

8. Equally fatal is the non-production of the Malkhana Register. Although PW-2 claimed that the recovered narcotics and sample parcels remained in his safe custody and were subsequently transmitted for forensic examination, no Malkhana Register was produced before the trial Court. Furthermore, the prosecution also failed to produce the road certificate or any documentary material demonstrating actual transmission of the sample parcels from the Malkhana to the Punjab Forensic Science Agency. The date, time, mode and manner of dispatch were left to be inferred from oral testimony alone.

9. In a case carrying severe penal consequences under the CNSA, such omissions assume significance. The prosecution was required to establish not only recovery of the narcotic substance, but also its conscious possession by the petitioner. When the alleged source of

recovery was not produced, the secret cavities were not demonstrated, and the petitioner's connection with the vehicle was not proved through reliable evidence, the element of conscious possession becomes doubtful. This doubt must necessarily operate in favor of the petitioner.

10. For the foregoing reasons, leave is granted. This Criminal Petition is converted into appeal and allowed. The petitioner Alam Khan son of Karam Khan is acquitted of the charge under section 9(c) of the Control of Narcotic Substances Act, 1997. He shall be released forthwith if not required in any other case.

Judge

Judge

Judge

Islamabad
09.06.2026
Muhammad Subhan Malik (JLC)/-
Approved for reporting.